

Court No. - 39

Case :- WRIT - C No. - 63307 of 2014

Petitioner :- Smt. Sharda Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & Another

Counsel for Petitioner :- Puneet Kumar Gupta

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Dinesh Gupta,J.

As prayed put up tomorrow.

Order Date :- 25.11.2014

vkg

(Dinesh Gupta, J)

(Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 63307 of 2014

Petitioner :- Smt. Sharda Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & Another

Counsel for Petitioner :- Puneet Kumar Gupta

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Shri Narayan Shukla, J.

Against the appeal the petitioner filed a complaint after depositing the amount before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer decided the complaint by an order dated 16.10.2014, against which the present petition has been filed.

After hearing the learned counsel for the parties, we are of the opinion, that the petitioner has a remedy of filing a complaint before the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005.

We, accordingly, dismiss the writ petition on the ground of alternative remedy permitting the petitioner to file a complaint before the forum within six weeks from today. If such a complaint is filed, the Forum will entertain the complaint without going into the question of limitation and decide the complaint on merit after hearing all the parties.

Order Date :- 26.11.2014

AKJ

(Shri Narayan Shukla, J.)

(Tarun Agarwala, J.)